

CASE SUMMARY

State v. Kuldeep

Ct. Case No. 630/2020 | CNR DLST01-006876-2020 | Special Court (Electricity), South District, Saket Courts, New Delhi

COURT	Special Court (Electricity), South District, Saket Courts, New Delhi
JUDGE	Sh. Vivek Kumar Gulia, Addl. Sessions Judge
DATE OF JUDGMENT	6 April 2026 (date of inspection / offence: 25 August 2020)
PARTIES	State (BSES Rajdhani Power Ltd.) v. Kuldeep, R/o South District, Delhi
STATUTES INVOKED	Sections 135 & 154 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B & 106, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.
RESULT	Convicted under Section 135, Electricity Act, 2003. Civil liability on the theft bill (Rs. 1,27,619/-) settled and the amount deposited during trial. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Kuldeep dishonestly abstracted electricity by directly tapping the licensee's pole through a two-core aluminium cable, the premises having no meter, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether, an unauthorised means of abstraction having been proved, Kuldeep discharged the onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 25 August 2020, an enforcement team of BSES Rajdhani Power Ltd. headed by the enforcement team of BSES Rajdhani Power Ltd. inspected the premises. No meter was installed at the premises; the supply was found being drawn by a direct tap from the BSES pole through a black two-core aluminium cable (10 sq. mm). The co-accused Deepak was later dropped, the case against him being withdrawn. The connected load was 6.734 KW. The proceedings were videographed with a Section 65B certificate, and an Inspection Report, Load Report and Seizure Memo (with an advisory notice) were prepared at the spot. Following the applicable tariff the company assessed a theft demand of Rs. 1,27,619/-, which went unpaid, and its Authorised Officer filed the complaint under Section 135 of the Act.

A notice under Section 251 Cr.P.C. was served and Kuldeep pleaded not guilty. In the statement under Section 313 Cr.P.C. the accused admitted presence at the inspection and the fact of the direct connection. The inspecting officials and the Investigating Officer were examined and the electronic record proved. The accused disputed the seizure and the sufficiency of proof of his identity as the user. Under Section 313 Cr.P.C. the accused denied the substance of the allegations and led no defence evidence.

REASONING OF THE COURT

HEADNOTE

Directly tapping the licensee's network to draw an unmetered supply is theft under Section 135(1)(a); the accused being identified at the videographed inspection, and the routine objections — no public witness, market-available case property, alleged defects in sealing or investigation — being no answer (an irregularity in search or seizure does not vitiate the trial: *N.M.T Joy Immaculate*), the unrebutted third-proviso presumption convicts.

The direct tap was a clause (a) abstraction attracting the presumption. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated by directly tapping the licensee's pole through a two-core aluminium cable, the premises having no meter as a clause (a) tapping of the licensee's pole. On proof of that artificial means the third proviso's presumption of dishonest use arose.

The accused was identified at the inspection and shown to be consuming. The accused himself admitted, in his statement under Section 313 Cr.P.C., his presence at the inspection and the fact of the direct theft, and he was clearly visible in the certified video recording; his own admission and the electronic record placed the abstraction on him beyond doubt.

The objections to the investigation did not vitiate the case. The Court rejected the defence that the case property was freely available in the market, that the seizure/sealing was defective or that no duty roster was proved: on *State v. N.M.T Joy Immaculate*, 2004 (5) SCC 729, an irregularity or illegality in the search, seizure or investigation does not by itself vitiate the trial or render the recovered material inadmissible, absent resulting prejudice.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown, and the site being in a thickly populated area where the public declined to join, on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* non-examination of an independent witness is no infirmity.

The presumption was compulsory and, unrebutted, convicted. Following *Neeraj Dutt* (compulsory “shall presume”) and *Hiten P. Dalal* (prudent-man standard), the Court held that Kuldeep, having led no defence evidence and produced no paid bills (*Mukesh Rastogi*; Section 106 onus), failed to rebut the presumption and was guilty under Section 135.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated by directly tapping the licensee's pole through a two-core aluminium cable, the premises having no meter as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the

rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

HELD

The prosecution proved beyond reasonable doubt that Kuldeep abstracted electricity by directly tapping the licensee's pole through a two-core aluminium cable, the premises having no meter, an offence punishable under Section 135 of the Electricity Act, 2003, and led no evidence to rebut the statutory presumption. **Kuldeep is accordingly convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

A direct-theft conviction fortified by the accused's own Section 313 admission and the certified video. Five propositions stand out:

- **Directly tapping the network is theft under clause (a).** A hooked or tapped connection drawing unmetered supply from the licensee's pole, mains or feeder pillar is a direct, artificial abstraction — no meter tampering need be shown.
- **Identification at the videographed inspection fixes the accused.** Presence in the photographs/video, undisputed signatures on the inspection report and appliances in use place the abstraction on the accused; a disconnected earlier connection makes the continued consumption dishonest.
- **An irregular search or seizure does not vitiate the trial.** Market-available case property, imperfect sealing or a missing duty roster go only to weight, not admissibility (*N.M.T Joy Immaculate*); absent prejudice the Court acts on the evidence.
- **A Section 313 admission, with the video, is decisive.** Where the accused admits presence and the direct connection in his Section 313 statement and is visible in the certified recording, the identity and factum of theft are established beyond the presumption.
- **A public witness is not essential in a populated locality.** Where the public decline to join in a crowded area, the officials' consistent testimony and the presumption of regularity suffice (*Ashwani Kumar; Sushil Sharma*).
- **The reverse-onus presumption convicts the silent accused.** No paid bills and no defence evidence leave the compulsory presumption un rebutted (*Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi*; Section 106).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>State v. N.M.T Joy Immaculate</i> 2004 (5) SCC 729	An irregularity or illegality in the search, seizure or investigation does not by itself vitiate the trial or render the recovered material inadmissible; absent resulting prejudice or failure of justice, the Court may act on the evidence.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.